Master Services Agreement - Acme Logistics Inc. and Testbed Consulting LLC

This Master Services Agreement ("Agreement") is made effective February 1, 2025 ("Effective Date") between Acme Logistics Inc., a Washington corporation, 200 Example Avenue, Seattle, WA 98100 ("Client"), and Testbed Consulting LLC, an Oregon limited liability company, EIN 99-9999999, 100 Example Lane, Portland, OR 97200 ("Consultant").

1. Services

Consultant will perform the services described in each Statement of Work ("SOW") signed by both parties. Each SOW is governed by this Agreement. If a SOW conflicts with this Agreement, this Agreement controls unless the SOW expressly says otherwise.

2. Term and renewal

2.1 The initial term is three (3) years from the Effective Date, ending January 31, 2028.

2.2 The Agreement renews automatically for successive one (1) year terms unless either party gives written notice of non-renewal at least ninety (90) days before the end of the current term.

2.3 Either party may terminate for convenience on sixty (60) days' written notice. Client will pay for all services performed up to the termination date.

3. Fees and payment

3.1 Time-and-materials services are billed at $210 per hour through January 31, 2027, and at $225 per hour from February 1, 2027.

3.2 Fixed-fee SOWs are billed at the milestones the SOW names.

3.3 Invoices are due thirty (30) days from receipt. Late amounts accrue interest at 1.5% per month.

3.4 Client reimburses pre-approved travel at cost.

4. Confidentiality

Each party will protect the other's Confidential Information with at least reasonable care, use it only to perform this Agreement, and disclose it only to personnel and subcontractors bound by written terms at least as protective. These duties survive for five (5) years after termination.

5. Intellectual property

Client owns all deliverables on payment in full. Consultant keeps its pre-existing tools, methods and templates and grants Client a perpetual, non-exclusive licence to use them within the deliverables.

6. Warranties

Consultant warrants that services will be performed in a professional and workmanlike manner.

Client's sole remedy for breach of this warranty is re-performance of the services, notified within
thirty (30) days of delivery.

7. Limitation of liability

Except for breach of Section 4 or a party's indemnity obligations, neither party's total liability
will exceed the fees paid or payable to Consultant in the twelve (12) months before the claim. Neither
party is liable for indirect, consequential or lost-profit damages.

8. Insurance

Consultant will maintain professional liability insurance of at least $2,000,000 per claim and
provide a certificate on request.

9. Non-solicitation

During the term and for twelve (12) months after, neither party will solicit for employment any
employee of the other who worked on the services, without written consent.

10. Governing law and disputes

Oregon law governs this Agreement. The parties will first try to resolve any dispute by mediation in
Portland, Oregon, before filing suit in Multnomah County.

Signatures

CLIENT: Acme Logistics Inc.
By: /s/ Raymond Fakesworth Title: Chief Financial Officer Date: January 24, 2025

CONSULTANT: Testbed Consulting LLC
By: /s/ Jordan Q. Testperson Title: Owner Date: January 24, 2025

FICTIONAL TEST DATA - every name, number and identifier in this file is made up.